



CHAPTER 25.

An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force.
[29th April 1947.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one million two hundred and ten thousand, exclusive of the numbers actually serving in India on the Indian establishment and paid directly out of the revenues of the Governor-General in Council, and of the numbers actually serving in Burma on the Burma establishment and paid directly out of the revenues of Burma :

And whereas it is adjudged necessary that a body of air forces should be continued for the purposes aforesaid, and that the whole number of such forces should consist of three hundred and seventy thousand, exclusive of any numbers serving as aforesaid :

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or

vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and forty-seven on the following days :—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1947.

Army Act and
Air Force Act
to be in force
for specified
times

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say :—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, nineteen hundred and forty-seven, to the thirtieth day of April, nineteen hundred and forty-eight, both inclusive ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, nineteen hundred and forty-seven, to the thirty-first day of July, nineteen hundred and forty-eight, both inclusive.

22 & 23 Geo. 5. c. 22. (2) Notwithstanding anything in subsection (1) of section fifteen of the Army and Air Force (Annual) Act, 1932, the amendments of the Army Act and the Air Force Act made by this Act shall come into operation in all places as from the thirtieth day of April, nineteen hundred and forty-seven.

(3) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(4) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or the Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS.

PART I.

AMENDMENTS OF THE ARMY ACT APPLICABLE ALSO (SUBJECT TO MODIFICATIONS) TO THE AIR FORCE.

3. In section one hundred and twenty-four of the Army Act (which entitles a person tried by court-martial to obtain a copy of the proceedings thereof upon payment therefor at the prescribed rate, not exceeding twopence for every folio of seventy-two words) for the word "twopence" there shall be substituted the word "fourpence".

Payments for
copies of
proceedings of
court-martial.

4.—(1) At the end of section one hundred and thirty-seven of the Army Act (which specifies the deductions which may be made from the ordinary pay due to an officer of the regular forces) there shall be added the following paragraph:—

Liability
of officer to
maintain wife
and children.

"(5) In respect of the maintenance of the officer's wife or child, or of any illegitimate child, or towards the cost of any relief given by way of loan to his wife or child, any sum ordered by the Army Council, or any officer deputed by them for the purpose, to be paid as mentioned in this Act."

(2) After section one hundred and forty-four of the Army Act there shall be inserted the following section:—

"144A.—(1) An officer of the regular forces shall be liable to contribute to the maintenance of his wife and of his children, and also to the maintenance of any illegitimate child of which he may be proved to be the father, to the same extent as if he were not a member of the regular forces; but execution in respect of any such liability or of any order or decree in respect of such maintenance shall not issue against his person, pay, arms, ammunition, equipments, instruments or clothing; nor shall he be liable to be punished for the offence

of deserting or neglecting to maintain his wife or family, or any member thereof, or of leaving her or them chargeable to any area or place.

(2) When any order or decree is made under any Act (including an Act of the Parliament of Northern Ireland and an Act of Tynwald) or at common law for payment by a man who is or subsequently becomes an officer of the regular forces either of the cost of the maintenance of his wife or child, or of any illegitimate child of whom he is the putative father, or of the cost of any relief given to his wife or child by way of loan, a copy of such order or decree shall be sent to the Army Council, or any officer deputed by them for the purpose, and in the case—

(a) Of such order or decree being so sent ; or

(b) Of it appearing to the satisfaction of the Army Council or any officer deputed by them for the purpose that an officer of the regular forces has deserted or left in destitute circumstances, without reasonable cause, his wife or any of his legitimate children under sixteen years of age,

the Army Council or officer deputed as aforesaid shall order to be deducted from the pay of the first-mentioned officer and to be appropriated in liquidation of the sum adjudged to be paid by such order or decree, or towards the maintenance of the wife or children of the first-mentioned officer, as the case may be, in manner directed by the order, such portion of that officer's pay as the Army Council or officer deputed as aforesaid in their or his discretion from time to time think or thinks fit, but so that there shall be left to the first-mentioned officer (subject, however, to the making of any other deduction authorised by or under any Act) not less than four-sevenths of his pay.

(3) No proceedings instituted against an officer of the regular forces under any Act (including an Act of the Parliament of Northern Ireland and an Act of Tynwald) or at common law for the purpose of enforcing against him any such liability as above in this section mentioned shall be valid against him if his commanding officer certifies that the officer is under orders for service out of the United Kingdom, and that in his opinion it will not be possible for the officer to attend the hearing and return to his quarters in sufficient time to enable him to embark for such service.

Every such certificate shall be sent to the court and shall be final and conclusive.

(4) Where any arrears have accumulated in respect of sums adjudged to be paid by any such order or decree as aforesaid whilst the person against whom the order or decree was made was serving as an officer of the regular forces, whether or not deductions in respect thereof have been made from his pay under this section, then after he has ceased so to serve an order of committal shall not be made in respect of those arrears unless the court is satisfied that he is able, or since he ceased so to serve has been able, to pay the arrears or any part thereof, and has failed to do so."

5.—(1) In section one hundred and thirty-eight, in paragraph (8), and in section one hundred and forty-five, of the Army Act for the word "bastard", wherever that word occurs, there shall be substituted the word "illegitimate". Minor amendments as to liabilities for maintenance.

(2) In the said section one hundred and forty-five in subsection (1) (which renders a soldier of the regular forces liable to contribute to the maintenance of his wife and children as if he were not a soldier) for the words "not a soldier" there shall be substituted the words "not a member of the regular forces".

(3) In the said section one hundred and forty-five after the words "any Act" in the first place where they occur in subsection (2) and where they occur in subsection (3) there shall be inserted the words "(including an Act of the Parliament of Northern Ireland and an Act of Tynwald)", and after the words "petty sessional division" in the said subsection (3) there shall be inserted the words "or (in Northern Ireland or the Isle of Man) the petty sessions district".

6. After section one hundred and forty-five of the Army Act there shall be inserted the following section:— Interim orders for deductions from pay towards maintenance of wife and children.

"145A. Where an application has been made to the Army Council or to an officer deputed by them for the purpose of subsection (2) of section one hundred and forty-four A or subsection (2) of section one hundred and forty-five of this Act for an order requiring a portion of the pay of an officer or soldier of the regular forces to be deducted and appropriated towards the maintenance of his wife or of his children on the grounds specified in paragraph (b) of either of the said subsections, the Army Council or the officer deputed as aforesaid may, if it appears to them or to him that a prima facie case has been made out for the making of such an order, make an interim order for such deduction and appropriation of pay (not exceeding the amount authorised by the subsection in question) to take effect pending the further examination of the case."

Amendment of Army Act, section 163 (1). 7. In subsection (1) of section one hundred and sixty-three of the Army Act (which contains provisions as to evidence in proceedings under that Act) after paragraph (j) there shall be inserted the following paragraph :—

“(jj) Where the proceedings are proceedings against an officer or soldier on a charge of being a deserter or absentee without leave, and the officer or soldier has been apprehended and has on arrest been taken into the custody of a provost-marshal, assistant provost-marshal or other officer, a certificate purporting to have been signed by such provost-marshal, assistant provost-marshal or other officer, and stating the fact, date and place of arrest, shall be evidence of the matters so stated”.

Application of Part I to Air Force Act. 8. References in the preceding sections in this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of the said sections shall in their application to the Air Force Act have effect subject to any of the general modifications set out in Part I of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply.

7 & 8 Geo. 5.
c. 51.

PART II.

AMENDMENT OF THE ARMY ACT.

Military
corrective
establish-
ments.

9. In section one hundred and thirty-two of the Army Act (which provides for the establishment and regulation of detention barracks) after subsection (3) there shall be inserted the following subsection :—

“(3A) Rules under this section may provide for the serving of sentences of imprisonment or detention, or parts of such sentences, in establishments to be known as military corrective establishments in lieu of in detention barracks, and such rules—

(a) may make special provisions as respects such establishments for any of the matters specified in subsection (2) of this section ;

(b) may provide for persons serving sentences in such establishments being allowed out of military custody for such periods, and subject to such conditions, as may be specified by or under the rules and for the application of this Act to persons allowed out of military custody in pursuance of the rules who have not returned thereto on the expiration of any such period or who do not comply with any such conditions, as it applies to persons who escape from lawful custody ;

and subject to the provisions of rules made by virtue of this subsection this Act shall apply in relation to military corrective establishments as it applies in relation to detention barracks.”

PART III.

AMENDMENT OF THE AIR FORCE ACT.

10.—(1) In section sixty-eight of the Air Force Act in paragraph (e) of subsection (2) (which provides that for the purposes of the provisions of that Act relating to detention the expression "detention barrack" includes a military detention barrack) after the words "military detention barrack" there shall be added the words "or military corrective establishment".

Detention of
airmen in
military
corrective
establish-
ments.

(2) In section one hundred and thirty-two of the Air Force Act (which provides for the establishment and regulation of detention barracks) after subsection (3) there shall be inserted the following subsection :—

"(3A) Rules under this section may provide that where—

- (a) persons subject to this Act are serving sentences in military corrective establishments, and
- (b) under the rules relating to such establishments provision is made for the said persons being allowed out of custody,

then if any such person does not return to custody on the expiration of the period for which under the said provision he is allowed out of custody or if he does not comply with any conditions subject to which under the said provision he is allowed out of custody, this Act shall apply to him as it applies to persons who escape from lawful custody."